

Court No. - 2

Case :- WRIT - C No. - 4839 of 2022

Petitioner :- M/S Krishna Enterprises , Unnao Thru. Its Proprietor Pawan Kumar Shukla

Respondent :- Managing Director , Madhyanchal Electricity Distribution Corporation Ltd. U.P. Lucknow And Others

Counsel for Petitioner :- Dileep Kumar Pathak, Diwakar Nath Tiwari, Rajneesh Kumar

Counsel for Respondent :- Amit Sharma, C.S.C.

Hon'ble Devendra Kumar Upadhyaya, J.

Hon'ble Rajnish Kumar, J.

Heard the learned counsel for the petitioner and Sri Amit Sharma, learned counsel representing the Madhyanchal Electricity Distribution Corporation Limited.

By means of this petition, a prayer has been made to quash the recovery certificate dated 18.07.2022 and further direct the respondents to accept 20% of the total amount due against the petitioner and restore the electricity connection.

In our jurisdiction under Article 226 of the Constitution of India, the disputes relating to electricity etc. are not possible to be determined for the reason that the same requires adducing evidence, as such the prayer made in this petition cannot be granted.

However, having observed as above, the petitioner, though admits the liability, is not remedy-less as Paragraph 6.14 of the Electricity Supply Code, 2005 provides that the Executive Engineer, Deputy General Manager and General Manager can grant upto maximum, two, three or four monthly instalments to be deposited in respect of the electricity dues.

Accordingly, we are not inclined to interfere in this petition. The writ petition is finally **disposed of** with the liberty to the petitioner to approach the authority concerned under Paragraph 6.14 of the Electricity Supply Code, 2005 or any other forum which may be permissible under law.

If the petitioner takes recourse to any other legal remedy including remedy under Paragraph 6.14 of the Electricity Supply Code, 2005, the same shall be considered and decided by the authority/court concerned, as expeditiously as possible.

Order Date :- 1.8.2022

Sanjay